

		Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal. App. 3d 1251, 1261. In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the <i>Tech-Bilt</i> standards. <i>Id.</i> Application Here, there is no evidence as to the amount of damages/cost of repair claimed by Plaintiffs based on the condition of the house or what settlement demands they have made. Nonetheless, Cross-Defendant has made a persuasive showing that its proportionate liability, if any, is minimal. [Ayotte Decl., ¶¶ 5-6, 8-11 and Ex. 1.] In the absence of any challenge, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient.” <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1261-1262 (“The ultimate determinant of good faith in whether the settlement is grossly disproportionate to what a reasonable person at the time of the settlement would estimate settlor’s liability to be.”); Cal. Prac. Guide: Civ. Proc. Before Trial at § 12:871. Accordingly, if proper service is shown by a complete proof of service, the court is prepared to grant Cross-Defendants’ unopposed motion for good faith settlement determination and sign its proposed order.
9	Solis vs. Jordan 2024-01411870	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions Off Calendar
10	Torres vs. Alcala 2023-01324923	Motion to Strike or Tax Costs Plaintiffs Marty Torres and Carlos Martinez (collectively, “Plaintiffs”) seek an order striking a memorandum of costs, or alternatively, taxing certain costs. Plaintiffs also request Frank Granato and Financial Center West, Inc. pay Plaintiffs \$1,060.

As an initial matter, the Court notes Plaintiffs did not properly serve the notice of motion and supporting papers on Defendants Diana Alcala and Robert Carlos Alcala, who are self-represented. Plaintiffs did not show these two self-represented litigants affirmatively consented to electronic service. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) However, this service defect is not fatal to this motion. (*Caruthers Bldg. Co. v. Johnson* (1916) 174 Cal. 20, 24 [“The failure to serve a given party will not deprive the court of jurisdiction to grant the motion in so far as it can be granted without affecting the rights of the party not served.”].)

In addition, Plaintiffs’ proof of service did not strictly comply with Code of Civil Procedure section 1013b, subdivision (b)(4).

More importantly, Plaintiffs’ notice of motion states Plaintiffs are seeking to strike “Plaintiff’s claimed costs in their entirety, or in the alternative, to Tax the Plaintiff’s claimed costs and award monetary sanctions” against Frank Granato and Financial Center West, Inc. (Notice, 1:23-24 and 2:1-2.)

“A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” (Cal. Rules of Ct., Rule 3.1110(a)). A basic tenet of motion practice is that the notice of motion must state the grounds for the order being sought and courts generally may consider only the grounds stated in the notice of motion. (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) The purpose of the notice requirements is to cause the moving party to sufficiently define the issues for the information and attention of the adverse party and the court. (*Id.*)

When a motion does not comply with Code of Civil Procedure section 1010 and California Rules of Court, Rule 3.1110(a), “the trial court could reasonably have rejected the entire motion as defective and noncompliant with California rules and statutes.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1127; see, 366-386 *Geary St., L.P. v. Superior Court* (1990) 219 Cal.App.3d 1186, 1200 [Relief properly denied when statutory authority only cited in the caption for petition but not raised in the notice or supporting papers by reference or discussion of the statute.].) The trial court may also overlook these defects and review the documents to determine the specific basis upon which relief is sought, as permitted by *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 807-808. (*Luri*, 107 Cal.App.4th at 1127; *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 808 [“Even though the notice of motion fails to state a particular ground for the motion, where the notice states, as here, that the motion is being made upon the notice of

motion and accompanying papers and the record, and these papers and the record support that particular ground, the matter is properly before the court and the defect in the notice of motion should be disregarded.”].) Defective notice may also be sufficient “if the omitted issue, or ground for relief, was raised without objection before the trial court.” (*Kinda*, 247 Cal.App.4th at 1277.) No opposition was filed.

It is likely Plaintiffs inadvertently stated “Plaintiff’s claimed costs” in their notice of motion. It is clear from the supporting memorandum and declaration that Plaintiffs are seeking to strike and/or tax Defendant Financial Center West, Inc.’s costs. Because no opposition was filed and the notice of motion is unclear, the hearing on this motion is continue to June 2, 2025 at 1:30 PM in Department C13. No later than May 1, 2025, Plaintiffs shall (1) file an amended proof of service showing the notice and moving papers were properly served on all parties and (2) serve and file an amended notice.

Plaintiffs shall give notice.